

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 27, 2026, AT 8:30 A.M.

Plaintiffs/judgment creditors now move for the court to reopen the hearing or reconsider its ruling.

First, plaintiffs/judgment creditors request the court to re-open the July 9, 2026, hearing to allow further argument pursuant to the mandatory attorney fault provision in Code of Civil Procedure section 473, subdivision (b) for their counsel's failure to attend oral arguments. However, the court already adopted the tentative ruling and thus further argument on the matter would be fruitless.

Second, plaintiffs/judgment creditors move for the court to reconsider its ruling pursuant to Code of Civil Procedure section 1008. However, as plaintiffs/judgment creditors concede, there are no new facts because the alleged facts plaintiffs/judgment creditors want the court to consider were known at the time of the original hearing. Additionally, plaintiffs/judgment creditors do not submit an affidavit that details "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008.)

The court is sympathetic to plaintiffs/judgment creditors' counsel's health concerns. However, the motion does not raise a sufficient factual or legal basis for the court to reopen oral arguments or reconsider its ruling.

Accordingly, plaintiffs/judgment creditors motion is denied.

12. S-CV-0058150 IN RE THE MATTER OF TINNEY, MADELYN

Petition for Approval of Minor's Compromise Claim

The petition for approval of minor's compromise claim is denied without prejudice. Petitioner seeks to recoup \$135,670.12 from the settlement due to her loss of income while caring for the minor and selling and purchasing a new home. The court cannot find this is in the best interest of the minor. Additionally, counsel of record did not sign his declaration in support of attorney's fees and costs.

13. T-CV-0002710 ZHANG, AILING v. THE RITZ-CARLTON HOTEL

The is dropped from calendar in light of the full dismissal with prejudice filed with the court on June 8, 2026.